

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The Spanish Agency for Data Protection became aware through a complaint filed by FUNDACIÓN ÉTICAS DATA SOCIETY (hereinafter, the complainant) of certain facts that could potentially violate data protection legislation.

By virtue of this knowledge, on October 27, 2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation actions provided for in Article 67 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), in order to investigate the SECRETARY OF STATE FOR SECURITY, GENERAL DIRECTORATE OF COORDINATION AND STUDIES, OF THE MINISTRY OF THE INTERIOR with NIF S2816001H (hereinafter, the investigated party) in relation to the aforementioned facts.

SECOND: As a result, the General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions and powers assigned to the control authorities by Articles 48.1 a) and 50 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and execution of criminal sanctions (hereinafter LO 7/2021), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the details that are subsequently exposed.

The content of the complaint revolved around the Comprehensive Monitoring System for Gender Violence Cases (VioGén System) of the Secretary of State for Security of the Ministry of the Interior. This system consists of a web application designed to coordinate the actions of Spanish public professionals responsible for monitoring, assisting, and protecting women reporting gender violence and their children.

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Through the written complaint, the complainant specifically stated that the VioGén System: (...).

FOURTH: On October 19, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 20 of LO 7/2021 and Article 35 of LO 7/2021, classified respectively in Article 59.e) d and 59.l) of the same regulation.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the complained party submitted a written response containing various allegations in the terms and with the content outlined below.

SIXTH: On March 13, 2024, the present authority formulated a resolution proposal, in which the analysis and response to the aforementioned allegations were carried out, concluding with the proposal to declare the following infringements attributable to the complained party:

- Infringement of Article 20 of LO 7/2021, classified in Article 59 f
- Infringement of Article 35 of LO 7/2021, classified in Article 59.e)
- Infringement of Article 41 of LO 7/2021, classified in Article 59.l)

Likewise, following the provisions of Article 77.1 of the LOPDGDD, in the event that the infringement is confirmed in the resolution to be adopted, it was proposed to adopt, within three months, the following measures:

- Include the information on data protection required by Article 21 of LO 7/2021 in all documents and/or

proceedings provided to victims at the time their personal data is to be processed, so that the obligation established in Article 20 of that regulation is effectively fulfilled.

- The performance and passing of the Data Protection Impact Assessment in the terms and with the minimum content required by Article 35 LO 7/2021.
- Implement the necessary measures to ensure the autonomy and independence of the DPD and thus avoid any situation that may cause a conflict of interest.

In this proposal, the procedure was made clear so that within a period of fifteen working days, the complained party could allege anything they deemed appropriate in their defense and

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to present the documents and information deemed pertinent, in accordance with Article 89.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

(hereinafter, LPACAP)

SEVENTH: The notification was carried out electronically, in the terms established by Articles 40 and following of the LPACAP, being made available on the date 13/03/2024 as evidenced by the acknowledgment of receipt in the administrative file. However, after ten calendar days from that date without access to its content by the recipient, it was understood to be rejected on 24/03/2024, proceeding with the process as prescribed by Articles 41.5 and 43.2 of the LPACAP.

EIGHTH: The aforementioned proposal was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations were received from the summoned party. Consequently, it is appropriate to continue the proceedings by issuing this resolution, which, once notified, will conclude the sanctioning procedure, without prejudice to any appeals that may be filed.

In view of all that has transpired, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: Through the diligence carried out by the acting inspector during the course of the investigative proceedings conducted on 28/02/2023, it was noted that access to the URL ***URL.1 found within the website of the Ministry of Interior leads to a page that offers the following sections related to Violence against women:

- "VioGén System
- Data Deletion VioGén System
- News and Events
- Legal Framework
- Publications
- Statistics of the VioGén system
- Links of interest"

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"The Comprehensive Monitoring System in cases of Gender Violence (VioGén System), of the Secretary of State for Security of the Ministry of Interior, was put into operation on July 26, 2007, in compliance with the provisions of Organic Law 1/2004, of December 28, "on Comprehensive Protection Measures against Gender Violence," with the following objectives:

- To bring together the different public institutions that have competencies in matters of gender violence
- To integrate all relevant information deemed necessary

- To predict risk
- Depending on the level of risk, to monitor and protect victims throughout the national territory
- To carry out preventive work, issuing warnings, alerts, and alarms through the "Automated Notification Subsystem," when any incident or event is detected that may endanger the victim's integrity.
- Finally, to seek to establish a dense network that allows for rapid, comprehensive, and effective monitoring and protection of battered women and their children, anywhere in the national territory." Likewise, regarding the section "data deletion VioGén system," pursuant to the aforementioned diligence, the following information has been confirmed:
- "The VioGén System (Comprehensive Monitoring System for Cases of Gender Violence) is a processing of personal data for which the person in charge is the head of the General Directorate of Coordination and Studies of the Ministry of Interior.
- This processing carries out the necessary activities to ensure the safety and protection of victims of gender violence, facilitate the monitoring of the measures applied, and prevent criminal activities linked to gender violence with the aim of protecting such victims and preventing criminal offenses against women who may be passive subjects of such conduct.

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- The individuals considered interested in this file will be the victims of acts that may be classified as gender-based violence and the individuals involved in judicial proceedings and investigations related to those same acts, without such inclusion prejudging the right to the presumption of innocence, a matter that will be resolved by the competent Judicial Authorities.
- Information about this file and all related to the way to exercise the rights by the interested parties can be obtained in detail on the website.
- Given the purpose of this processing and its description, in accordance with the fundamental rights that may be weighed, regarding the exercise of the right to erasure, it should be noted that the data registered in the VioGén System will be retained in accordance with Article 8 of the LOPDP and will only be erased at the request of the interested parties in those cases where there is a firm judicial resolution of definitive dismissal, a firm acquittal sentence, and the cancellation of criminal records (judicial) derived from the same.
- However, requests for data erasure may be denied when the data remains necessary for the achievement of the purposes for which it was collected (protection of victims and prevention of criminal offenses related to gender-based violence), or when there has been any reiteration, recidivism, or breach of judicial measures or penalties. Without prejudice to applying Article 24 of the LOPDP if necessary and justified to apply any restriction to the rights of information, access, rectification, erasure of personal data, and limitation of its processing.
- In relation to the above, it is essential to provide the certified documentation that proves the firmness of the resolutions and the conclusion of the proceedings (acquittal sentence, filing, dismissal, or enforcement of the sentence (for these cases, prior proof of cancellation of the criminal record is required).

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- The forms may be submitted, for validation and mandatory registration, to any National Police or Civil Guard office, as well as to any office of the Delegations or Subdelegations of the Government existing in each province, through the General Electronic Registry of the General Administration of the State in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative

Procedure of Public Administrations.

- The requests will be responded to within one month, although, considering the complexity and number of requests, the deadline may be extended by another two months (which will be communicated to the interested party)."

By clicking the link "website" in the fourth paragraph of the transcribed text, it is also confirmed that the following sections appear:

- "Applicable regulations
- How to exercise your rights
- Record of Treatment Activities
- Data Protection Delegates of the Ministry of the Interior"

Furthermore, on that page, the following documents are available for download in pdf format:

- "Form for exercising personal data protection rights for the Comprehensive Monitoring System of Gender-Based Violence Cases.
- General form for exercising personal data protection rights (not valid for police records)
- Record of treatment activities of the Ministry of the Interior"

It is confirmed that by selecting the section "How to exercise your rights," the following information is displayed:

- "Interested parties may exercise the rights of access, rectification, erasure, limitation of processing, opposition, and data portability, in accordance with the provisions of Articles 15 to 22 of the General Data Protection Regulation, and the rights of access, rectification, erasure, and limitation in accordance with Articles 20 to 25 of Organic Law 7/2021, of May 26, on data protection.

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personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions.

- Each Directorate of the Ministry of the Interior may indicate, on its corresponding website or section, specific procedures for exercising rights.

- HOW TO EXERCISE YOUR RIGHTS REGARDING POLICE RECORDS To exercise the rights related to police records, a specific procedure has been established, available on the Police Records Management page.

- HOW TO EXERCISE THE REST OF THE RIGHTS OF THE MINISTRY OF THE INTERIOR For those treatments that do not have a specific procedure, rights can generally be exercised as follows:

o First, you must download the General Form for exercising data protection rights (not valid for police records or gender violence) available at the end of this page, in the DOWNLOADS section.

o As an exception, to exercise rights related to the Comprehensive Monitoring System for Cases of Gender Violence, follow the same procedure, keeping in mind that the form to download and fill out is the Personal Data Protection Rights Exercise Form for VioGén, which is available in the DOWNLOADS section at the end of this page (Information about the VioGén system).

o Complete the appropriate form properly, specifying which treatment you wish to exercise your rights over (Data Controller and Name of the treatment) and which right(s) you wish to exercise. The necessary data to identify the specific treatment in the form (Name of the treatment and Data Controller) can be obtained from the Treatment Activities Registry document, available in the DOWNLOADS section, which lists the various treatments of the Ministry, grouped by Directorate.

- Incomplete forms that do not properly identify the data controller, the name of the treatment, and the rights to be exercised will not be accepted.

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- Once the form is duly completed, it can be submitted to the Data Controller through two different means:

- o Through the electronic registry, submitting the form via the existing procedure on the electronic headquarters of the Ministry of the Interior (requires a Digital Certificate and the ability to perform electronic signature via Java applet or Autofirma application).
- o Or in person through the network of assistance offices regarding registrations, presenting the paper form.

- Requests submitted by other means (such as postal mail or email) will not be accepted.

- You also have the right to file a complaint with the Spanish Agency for Data Protection: C/ Jorge Juan, 6. 28001. MADRID (www.aepd.es)

Within the document related to the Treatment Activities Registry of the Ministry of the Interior, last updated on 29/09/2023, the responsible entity for the VioGén System is established as the Secretary of State for Security, General Directorate of Coordination and Studies (hereinafter, SEG DGCE).

SECOND. The responding party provided during the investigation proceedings the "protocol for first police contact with victims of gender violence in a state of disempowerment (protocol zero)."

Within this document, which is part of the administrative file of the present procedure, the following information regarding the first police contact with victims of gender violence is found:

- "The occasions when the personnel of the FFCCS acting on the front line of intervention with victims of gender violence obtain or can obtain information through statements from individuals at the scene and their direct observation of great interest to improve the subsequent police risk assessment and thus activate the Police Protocol under the best conditions and all subsequent actions that may arise complementarily to comprehensively increase the protection of victims and meet their needs in accordance with the provisions of Instruction SES 4/2019. The information that, in many cases, is obtained by those conducting these interventions, very guided in terms of immediacy, can be key in improving the procedures aimed at protecting especially vulnerable victims, limiting the loss of information through a structured protocol that clearly guides important tasks. In this way, the C/ Jorge Juan, 6

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Zero Protocol Action Guide on Gender Violence

describes very specific actions during the first police contact with victims of gender violence through the following axes:

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During the police intervention process, all aspects related to the safety of the victim and minors, if any, must be taken into account, especially.

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The operational and documentary actions framed in this Zero Protocol are particularly indicated for cases where the police personnel have been informed by the victim of her refusal to formally report at police stations, or have indications of this, regarding the circumstances that motivated events presumably related to an incident of gender violence, whether known for the first time or related to a breach of judicial measures.

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The acting force must pay special attention to the statements of the people present at the scene, especially the victim, in accordance with the risk indicators and scenarios outlined in the Action Guide attached to this instruction. In this regard, they will have a working document prepared for this purpose called the Zero Protocol Action Guide on Gender Violence.

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During the police intervention, those acting must assess the most appropriate moment, if deemed appropriate, to listen to the victim regarding what she wishes to express and, if applicable, clarify the circumstances that motivated the alleged criminal acts. In these cases, the information must be

obtained in a private environment, away from minors and any other person. This should also be an opportunity to find out if she requires specific support resources.

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In the case of minors in the victim's care, police personnel must ascertain whether the alleged events occurred in their presence and whether they have suffered direct or indirect aggression and/or threats on this or any other occasion.

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Before leaving the scene of the intervention, those acting in the first instance must inform the victim of the nearby available phone numbers and resources. In particular, those that offer immediate attention and confidentiality.”

It is certified that in the Annex of said Document, the Zero Protocol Action Guide on Gender Violence is developed for the first contact with the victim of gender violence. It indicates the following recommendations:

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“The following recommendations constitute a decalogue that will allow obtaining highly valuable information to subsequently assess the risk of the victim of gender violence and better understand aspects of vulnerability and lack of protection. It is especially aimed at cases where there are indications that, at least initially, the victim does not wish to file a complaint. For this, observation as acting agents and information obtained from the victim, the alleged aggressor, or any person who may provide relevant information in the context of the intervention in the field of gender violence is required.

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Request information from the victim in a private environment, away from both minors and any other person. Also take the opportunity to find out if she requires specific support resources.

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Try to obtain information through all available sources by observing the statements of the people present and your observations (victim, witnesses, alleged aggressor, others).

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Be careful when obtaining information, prioritizing the safety of the victim and minors. Also consider that the victim's concern for her own safety may affect her ability to provide the necessary information.

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Pay attention to the environment and the people present. Rely on the experience of similar situations.

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In the event that the police intervention takes place in a home, pay attention to the environment to understand to what extent it can provide useful and valuable information.

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At no time suggest the meaning of the responses in cases where it is advisable and pertinent to ask any questions. Ask questions to any informant skillfully and politely.

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Please note that the most dangerous moment is when the alleged perpetrator discovers that the victim may attempt to end the relationship.

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There may be other indicators or circumstances that help predict a new aggression. Indicate them

when appropriate.

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Try to ascertain if there are minors affected or in a vulnerable situation.

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Do not leave the location without informing the victim of the available nearby phone numbers and resources, especially those that offer immediate attention and confidentiality.

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"This Action Guide for incidents of gender violence is framed within a procedure called Protocol Zero, which is aimed at improving the actions of police officers at the scene and is especially indicated for cases of police action involving victims of an alleged crime of gender violence where, due to various circumstances, there is suspicion that the victim will not come to give a statement at police facilities. Due to its immediacy, the information obtained at the scene of the action is of great value because of the lack of information to carry out the police risk assessment that exists in some cases. Remember the importance of this information since the main objective of this 'contact protocol' is to ensure the collection of a minimum amount of information quickly and directly, allowing for better completion of the Police Risk Assessment (VPR) and thus better adjust the potential risk to the victim and understand their level of vulnerability. Therefore, this document incorporates a decalogue of specific recommendations related to the information available at each moment and situation."

□

"Due to the unique circumstances of this type of intervention and the risk scenario in which particularly vulnerable victims may find themselves, as much as possible, try to internalize the recommendations included in this action guide to be able to present with maximum detail after the action at the scene and thus improve the quality of the diligence of indicators of gender violence, paying special attention to the following indicators and risk scenarios:

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Inquire whether any episode of physical violence has occurred, even without injury. Please pay special attention to whether the victim may have suffered any aggression in the neck area.

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Inquire whether weapons have been used with the intent to assault or threaten the victim and, if so, the type of weapon used. Regarding threats, if verbalized, are they threats of death and/or suicide?

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Observe whether the spontaneous expressions and/or verbalizations made by both the victim and the alleged aggressor, or other sources of information, suggest that this is not an isolated episode, but rather a repeated one, involving a certain increase in violence or its chronicity.

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Pay attention to whether, with the information available at the scene, it seems that the current facts or other previous ones may be motivated wholly or partially by the jealousy of the alleged aggressor.

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Observe whether the expressions or other information suggest the existence of any type of controlling and/or harassing behavior by the alleged aggressor, from their environment, as well as the family context of the victim.

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Pay attention to whether during this or any previous police intervention, there have been recorded instances of disrespect or challenging behavior towards the acting police personnel by the alleged aggressor. On the other hand, also observe whether there is any damage at the scene caused by the alleged aggressor.

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Observe and inquire whether the alleged aggressor presents any mental disorder and/or tends to be very impulsive or aggressive with behavioral alterations, particularly noting if there are or have been ideas or attempts of suicide, as well as a possible addiction or abuse of substances, including alcohol.

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Observe and pay attention to the spontaneous expressions and/or verbalizations made by the victim to determine if they present any disability, depressive episodes, or other mental disorders, especially if they express ideas or attempts of suicide, as well as a possible addiction or abuse of substances.

Request, if possible and indicated, any additional explanation regarding this to channel some type of help.

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Inquire whether the information obtained during the action suggests that the victim has

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expressed to the aggressor their intention to end the relationship recently.

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Observe and take an interest in knowing if from your observation or from the statements of the victim or third parties it can be inferred that the victim believes that the aggressor is capable of violently assaulting her or even killing her.

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Verify the possible existence of minors under the care of the victim and, if applicable, pay attention to whether there are any elements indicating that they have suffered threats to their physical integrity from the alleged aggressor, and/or that the victim fears for her safety.

"It is established that there is no mention whatsoever regarding the rights of personal data protection for victims of gender-based violence, neither in the cited protocol of action nor in its annex."

THIRD. The responding party also provided during the investigation proceedings the "Guide to Rights for Women Victims of Gender-Based Violence." It is established that within this guide there is a section related to "Rights of Crime Victims of which Gender-Based Violence Victims are also Holders" with the following subsections:

- "4. Rights of Crime Victims of which Gender-Based Violence Victims are also Holders
 - 4.1. Rights of the Victim Statute
 - 4.2. Right to file a complaint
 - 4.3. Right to request a protection order.
 - 4.4. Right to request a European protection order
 - 4.5. Right to be a party in the criminal proceedings: the offering of actions
 - 4.6. Right to the restitution of property, repair of damage, and compensation for harm caused
 - 4.7. Right to receive information about judicial proceedings
 - 4.8. Right to the protection of the dignity and privacy of the victim within the framework of processes related to gender-based violence
 - 4.9. Assistance to victims of crimes considered gender-based violence"

Within the subsection "Right to the protection of the dignity and privacy of the victim within the framework of processes related to gender-based violence," the following content is found:

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- "Organic Law 1/2004 provides for specific measures for the protection of the dignity and privacy of the victim. On one hand, it establishes that the personal data of the victim, her descendants, and the persons under her guardianship or custody shall be confidential.

- The confidentiality of the new address, workplace, or schools of the children not only preserves the privacy of the victim but is also an important instrument for her safety, preventing this information from reaching the knowledge of the accused. For this same purpose, the model application for the protection order stipulates that the victim may indicate an address or phone number of a third party to whom the Security Forces or judicial bodies may send communications or notifications.
- On the other hand, the Victim Statute Law recognizes the right of victims to the protection of their privacy within the framework of the criminal process, and in this regard, it obliges judges, prosecutors, officials in charge of the investigation, and any person who intervenes or participates in the process in any way to adopt the necessary measures to protect the privacy of victims and their families, in accordance with the provisions of the Law. In particular, regarding minor victims or victims with disabilities needing special protection, measures must be taken to prevent the dissemination of any type of information that may facilitate their identification.
- In this regard, according to the Criminal Procedure Law, the Judge may agree, either ex officio or at the request of the Public Prosecutor or the victim, to adopt any of the following measures when necessary to protect the privacy of the victim or the respect due to her or her family:
 - Prohibit the disclosure or publication of information relating to the identity of the victim, of data that may facilitate her identification directly or indirectly, or of those personal circumstances that have been assessed to resolve her protection needs. Prohibit the obtaining, disclosure, or publication of images of the victim or her relatives. Likewise, the Court may agree, either ex officio or at the request of the victim herself or the Public Prosecutor, that the judicial proceedings shall not be public and that the hearings shall be held behind closed doors."

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It is noted that, in the aforementioned guide, including that subsection, there is no reference to the general regulations (GDPR or LOPDGDD) or specific regulations regarding the protection of personal data (LO 7/2021), nor to the rights derived from them.

FOURTH. The administrative file of this procedure contains the submission by the responding party of two documents consisting of the rights proceedings from the General Directorate of Police and the Civil Guard, which are subsequently incorporated into the corresponding report and through which the victim of gender-based violence is informed of the rights that assist her.

Thus, regarding the Rights Proceedings of the General Directorate of Police, various rights are stated, divided into the following sections:

- Right to information
- Right to free legal assistance
- Right to integrated social assistance
- Right to protection of her person
- Labor and social security rights
- Right to receive social aid
- Access to public housing and residence for the elderly
- Rights of the foreign victim regrouped or in an irregular situation

Within the content of these sections, there is no reference to the regulations on data protection, nor to the guaranteed rights derived from them.

Regarding the Rights Proceedings of the Civil Guard, the following content related to the rights that assist her is noted:

- "To be accompanied by a person of her choice from the first contact with the authorities and officials.
- To file a complaint and obtain a certified copy of the complaint, and, if applicable, the procedure for filing the complaint and the right to provide evidence to the authorities in charge of the investigation.
- To free linguistic assistance and written translation of the copy of the complaint filed when she does not understand or speak any of the official languages in the place where the complaint is filed.

Exceptionally, the written translation of the complaint may be replaced by an oral summary of its content.

- Once she is a party to the case, to be informed of the actions taken and to request what is her right to do.
- To know the procedure for obtaining legal advice and defense and, if applicable, the conditions under which it can be obtained for free.
- To participate in the process by appointing a lawyer and representative or having one appointed ex officio if she is entitled to free legal assistance under Law 1/1996 and RD 2103/1996 and to exercise the civil and criminal actions that may proceed or only one or the other as she sees fit. This right must be exercised before the opening of the oral trial.
- To waive the restitution of the thing, repair of the damage, and compensation for the harm caused."

Within the content of these proceedings, there is no information regarding the rights that assist her in terms of data protection, nor to the regulations where they are found.

FIFTH: From the documentation provided during the course of this procedure, it is evident that at the beginning of the investigation actions, there was an absence of the Data Protection Impact Assessment (DPIA) provided for in Article 35 regarding the processing carried out by the VioGén system. During the investigation actions, the responding party provided information regarding the decision to carry out a DPIA, when in June 2021, the processing was adapted in accordance with the regulations in force at that time. According to the documentation provided by the responding party, it is concluded that the performance of a DPIA is not necessary as it is not a new system nor do the circumstances of LO 7/2021 apply:

"In that factual and legal environment, the need to carry out a DPIA was not considered since it was not a new system or that the circumstances of Article 35 of the LOPDP applied."

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 49 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter, LO 7/2021), assigns to the data protection authorities, in accordance with the provisions of Article 48 of the aforementioned LO 7/2021 and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Data Protection

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Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, Article 52 "Applicable regime for procedures processed before data protection authorities" of LO 7/2021 establishes that:

"1. In the event that the interested parties consider that the processing of personal data has infringed the provisions of this Organic Law or that their request to exercise the rights recognized in Articles 21, 22, and 23 has not been addressed, they shall have the right to file a complaint with the data protection authority.

2. Such complaints shall be processed by the competent data protection authority in accordance with the procedure established in Title VIII of Organic Law 3/2018, of December 5, and, where applicable, by the legislation of the Autonomous Communities that is applicable. The general rules on administrative procedures and the legal regime of the public sector shall apply subsidiarily."

II

Applicable Legal Regime

Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, establishes in its Article 2 a series of personal data processing activities to which it does not apply. Among these processing activities, subsection d) refers to those carried out "by competent authorities for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses, or enforcing criminal penalties, including protection against threats to public security and their prevention."

For processing of this nature, the current Organic Law 7/2021, of May 26, is applicable, through which Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or enforcing criminal penalties, and the free movement of such data, is transposed into our legal system. In this regard, this organic law aims, according to its first article, "to establish the rules relating to the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of preventing, detecting, investigating, and prosecuting criminal offenses or enforcing criminal penalties, including protection and prevention against threats to public security."

Moreover, Article Two, by delimiting its scope of application, establishes that this regulation shall apply "to the total or partially automated processing of personal data, as well as to the non-automated processing of personal data contained or intended to be included in a file, carried out by competent authorities for the purposes of preventing, detecting, investigating, and prosecuting criminal offenses and enforcing criminal penalties, including protection and prevention against threats to public security."

For its part, Article 61 of the aforementioned LO 7/2021 establishes that the exercise of the sanctioning power corresponding to the competent data protection authorities shall be governed by the provisions of this chapter, by Titles VII and IX of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, and, to the extent that it does not contradict it, subsidiarily by the regulations on the common administrative procedure of Public Administrations and the legal regime of the public sector.

III

Response to the Allegations Presented Against the Initiation Agreement

Article 88 of the LPACAP establishes that "The resolution that concludes the procedure shall decide all the issues raised by the interested parties and those arising from it."

In accordance with the content of this provision, although no allegations have been presented against the proposed resolution issued by the instructor of this procedure, it is appropriate to refer in this resolution to the allegations presented by the interested party against said initiation agreement. In this way, the proper separation between the instructive phase and the sanctioning phase, as provided for in Article 63 of the LPACAP as a specialty for sanctioning procedures, is guaranteed.

From the aforementioned written allegations presented against the initiation agreement of this procedure, the following stood out:

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In relation to the infringement provided for in Article 58, paragraph f) of LO 7/2021, consisting of the omission of the duty to inform the interested party about the processing of their personal data, it was denied that there was a total absence of information to the interested parties regarding data protection, claiming to comply with the obligation to inform individuals whose personal data is to be processed. It is argued that, within the actions derived from attributing to a person conduct constituting a crime of gender-based violence, various data processing activities are generated with different controllers.

Furthermore, it is alleged that in the proceedings for communicating to the victim the level of risk and in the applicable protection plan, information related to the VioGén System is already included.

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Regarding the infringement consisting of not having carried out the impact assessment provided for in Article 35 of Law 7/2021, it is claimed that a proactive attitude has been maintained beyond merely filling out the formal impact assessment document required. Additionally, it is stated that similar protective actions were already taken into account before the law came into force, and that there has been no sanctioning procedure by the agency. Finally, it is argued that the aforementioned Article 35 requires that the assessment must be carried out prior to the processing and not once it has been developed, as otherwise, behaviors could be generated that would violate the rights of individuals. Before addressing the response to the aforementioned allegations, similarly to what the instructor did in the resolution proposal, it is appropriate to make special reference to the nature of the position of the person who drafted and signed the aforementioned written allegations. As noted in the administrative file of this procedure, the allegations were prepared and electronically signed by the Data Protection Officer designated for the Secretary of State for Security and not by the data controller. In this regard, it is worth noting, albeit briefly, the different functions and roles that Law 7/2021 assigns to both figures, a norm that is applicable in the present case.

Thus, Article 5 of the aforementioned norm defines the 'data controller' as "the competent authority that, alone or jointly with others, determines the purposes and means of the processing of personal data. If the purposes and means are determined by European Union law or Spanish legislation, these norms may designate the data controller or establish the criteria for their appointment."

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On the other hand, the figure of the Data Protection Officer (hereinafter DPO) is regulated in the third section of Chapter IV of the law, and their existence is necessary, as established by Article 40, unless it concerns judicial bodies or the Public Prosecutor's Office when the processing of personal data is carried out in the exercise of their judicial functions. The explanatory memorandum defines this figure as the body or figure responsible for advising and supervising data protection controllers. Among the functions of the DPO, as stated in Article 42, is to inform and advise the controller and employees about their obligations, supervise compliance with the Organic Law and other data protection provisions, as well as cooperate with Data Protection Authorities. The nature of the DPO implies a special autonomy and independence concerning the data controller, as established by Article 41, according to which "the independence of the data protection officer within the organization shall be guaranteed, and any conflict of interest must be avoided."

On the other hand, regarding the submission of allegations in a sanctioning procedure, it should be noted that, as provided in Article 6 of the aforementioned law, it is the data controller who must guarantee and demonstrate compliance with the obligations required by the article.

Considering the aforementioned provisions, it must be the data controller who, in the case of the present sanctioning procedure, presents the allegations they deem appropriate against the initiation agreement in order to prove their compliance with the regulations. Conversely, the submission of such allegations by the DPO, as indicated in the proposal, entails the existence of a conflict of interest, given that it affects the special autonomy and independence previously referenced. If the DPO assumes the defense of the controller in a sanctioning procedure, their independence is compromised, as in such a case they are acting in the interest of the controller and not in their neutral role of supervision.

In this sense, allowing or assigning a DPO to defend sanctioning procedures regarding data protection implies an interference in their functions, an act that is classified as a serious infringement in Article 59 of Law 7/2021, which was incorporated by the instructor in the proposal and which is also confirmed in this resolution in the terms outlined below.

Allegation against the infringement of Article 58 f) of Law 7/2021. Regarding the infringement provided

for in Article 58, paragraph f) of Law 7/2021, consisting of the omission of the duty to inform the interested party about the processing of their...

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Personal data, a total absence of information to the interested parties regarding data protection is denied, asserting compliance with the obligation to inform individuals whose personal data will be processed. It is indicated that within the actions derived from attributing to a person conduct constituting a crime of gender-based violence, various data treatments are generated with different responsible parties such as the Judicial Authorities of the Criminal Order and the Public Prosecutor's Office, the acting police bodies, and that which is carried out in the VioGen System. It also notes that in the proceedings for communicating to the victim the level of risk and the applicable protection plan, information related to the VioGen System is included.

From this assertion, the existence of various data treatments within the cycle of actions derived from attributing to a person conduct constituting a crime of gender-based violence is inferred. In this regard, it is worth noting that each of these treatments, although related to each other within the framework of the investigation and judicial process, are independent and differentiated for the purposes of their compliance with data protection regulations. This means that the obligation to inform about the data treatment with the content required by Article 21 must be applied individually to each of these treatments and, consequently, it is the responsibility of each of the responsible parties to provide the information required by the regulations regarding the treatment they intend to carry out.

In this sense, the recent ruling of January 11, 2024, by the Court of Justice of the European Union (C-231-22) is particularly relevant, as it defines and develops the assumptions under which there is a chain of data treatment. This ruling highlights in these cases the continuity and interconnection between the different agents involved in the treatment of the same personal data under a common legal framework. This approach is very useful for analyzing the personal data treatment carried out through the forms of the VioGén system and the subsequent judicial processes.

In the context of the VioGén system and the actions of judges and courts, a chain of personal data treatment is established where each link (represented by different agents such as police bodies, victim assistance services, and the judicial system) processes the data for specific purposes that, although differentiated, are intrinsically connected by a common objective: to protect victims and carry out the appropriate procedure in response to criminal acts. The determination of the purposes and means of these data treatments, although carried out by different agents, is framed within a set of legal provisions that define and regulate their activities. This implies that, although there is no direct agreement between these agents regarding the specific objectives and methods of data treatment, national regulations implicitly establish a network of obligations and responsibilities that link the different treatments.

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The aforementioned legal framework, which regulates the chain of processing of personal data, ensures that each agent fulfills their responsibilities regarding data protection, guaranteeing the rights of victims at every stage of the process. This includes the right to be informed about how and by whom their personal data is processed, the right to access their data, and the right to request the rectification or deletion of the same, among others. Therefore, the chain of data processing in relation to actions concerning gender-based violence in the case of VioGén is characterized by the succession of personal data processing that, although carried out by different agents, are connected by clearly defined legal purposes and by obligations that, although distributed among the various links in the chain, form a coherent system aimed at protecting the rights of individuals.

In conclusion, the chain of processing approach implies functional coordination among the different agents, where national regulations act as a unifying element that establishes both the shared purposes and the specific responsibilities of each agent within the chain, thus ensuring effective protection of personal data and the rights of the individuals involved throughout the entire process.

In the present case, as evidenced by the proven facts second, third, and fourth, regarding the processing carried out by SEDGCE through the VioGén system, there has been a failure to comply with the obligation to provide information as required by Article 21 of LO 7/2021. Both in the rights proceedings of the National Police and the Civil Guard, in the Victims of Violence Rights Guide, and in the action protocols, although various regulations and rights are mentioned, there is no reference to the rights that assist them regarding the protection of personal data concerning the processing of those collected or processed by the system, a fact on which, among other reasons, the present sanctioning procedure was initiated.

In this regard, Article 21 of LO 7/2021 includes information that must be made available to the interested parties, such as the identification of the data controller, the contact details of the data protection officer, the purposes of the processing to which the personal data is destined, the right to lodge a complaint with the data protection authority, or the right to request from the data controller access to the personal data relating to the interested party and its rectification, deletion, or limitation of its processing. As evidenced in the proven facts second, third, and fourth, none of this information is expressly included in the rights proceedings of the National Police and the Civil Guard that are subsequently incorporated into the reports, nor in the

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Protocol for Police Risk Assessment and Management of the Safety of Victims of Gender-Based Violence, nor in the Rights Guide; all documents provided by the responding party during the course of the investigation proceedings.

As previously indicated, although certain information regarding data protection related to the VioGén System has been verified on the website of the Ministry of the Interior, as will be explained later, it is not possible to consider the obligation of information required by Article 20 of LO 7/2021 fulfilled merely by publishing such information on the website of the data controller. On the contrary, this information must be made available to interested parties at the time personal data is to be processed through the VioGén system, which should be expressly included in the various proceedings or forms issued prior to its use. As evidenced by the proven facts three and four, this circumstance does not occur in the documentation presented by the responding party, which does not even include an indication of the website where such information is published.

Allegations regarding Article 35 of LO 7/2021

These allegations refer to the non-compliance with the impact assessment required by Article 35 of the aforementioned law. In this regard, it is claimed that a proactive attitude has been maintained beyond merely filling out a formal document that could have been called an impact assessment. It is also noted that similar protective actions were already taken into account before the law came into force and had not been subject to any sanctioning procedure by this authority, with the processing having occurred for more than 15 years.

In this respect, it is important to indicate that having maintained a proactive attitude in certain aspects of data protection does not replace the need to comply with the obligation to carry out a DPIA when the circumstances determined by the regulations are present. LO 7/2021 clearly establishes that, in cases of processing that pose a high risk to the rights and freedoms of individuals, it is mandatory to formally conduct a detailed impact assessment with the information required by Article 35 of the same regulation. This assessment is not a mere bureaucratic procedure but is an essential tool for identifying and mitigating specific risks related to data processing. Furthermore, the performance of the impact

assessment is an independent obligation and is not mitigated by the fact that data protection measures were implemented before the law came into force.

On the other hand, the fact that data processing has been carried out for more than 15 years without prior sanctions from this authority does not exempt the data controller from complying with current obligations. Data protection regulations have evolved significantly,

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especially with the entry into force of the GDPR and the approval of Law 7/2021, and previous practices do not necessarily align with current data protection standards.

As a final allegation, it is stated that the aforementioned Article 35 of Law 7/2021 requires that such an assessment must be carried out prior to processing and not once it has already been developed, as otherwise, behaviors could arise that might infringe upon the rights of individuals. In this regard, it is reiterated that the system was created before the entry into force of this Law.

In response to this last allegation, it is appropriate to highlight that what the provision seeks through the requirement that such an assessment be carried out prior to processing is precisely the evaluation of potential high-risk situations concerning the rights and freedoms of the data subjects and to avoid, as far as possible, the materialization of such risks. Such risks, moreover, vary over time, as the circumstances in which processing occurs (context, nature, scope, or purposes) do not remain unchanged over time. This consequently requires continuous evaluation which, concerning the DPIA, entails the performance of periodic updates as the context, nature, scope, or purposes of the processing (including the type and number of personal data processed) change over time.

As a result of the above, each time the VioGén system processes personal data of individuals, a new data processing occurs to which the current regulations fully apply. Therefore, although the system was created before the entry into force of Law 7/2021, the data processing carried out from the implementation of the new regulations requires the existence of a prior Impact Assessment for them to comply with that regulation. Contrary to the assertion by the responding party that the application of the new data protection regulations could infringe upon the rights of individuals, its implementation reinforces and expands these protections. In fact, it is crucial for identifying and mitigating any potential risk to the rights and freedoms of individuals that may arise due to the nature, scope, context, or purposes of the processing of personal data.

IV

Unfulfilled obligation of Article 20.1 of Law 7/2021

Article 20 of the aforementioned Law 7/2021 establishes the general conditions for exercising the rights of data subjects concerning data protection, stating in its first section that:

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“1. The data controller must provide the data subject, in a concise, intelligible, easily accessible manner, and in clear and simple language for all individuals, including those with disabilities, all the information contemplated in Article 21, as well as that derived from Articles 14, 22 to 26, and 39. Furthermore, the data controller must take the necessary measures to guarantee the data subject the exercise of their rights referred to in Articles 14 and 22 to 26.”

Thus, from the proven facts FIRST, SECOND, THIRD, AND FOURTH of this resolution, it follows that the investigated entity has not complied with the information obligation imposed by the aforementioned Article 20 of Law 7/2021 when processing personal data of the data subjects concerning the data processing carried out by the VioGén system.

As indicated in the proven fact FIRST, the VioGén System (Comprehensive Monitoring System for

Cases of Gender Violence) is a processing of personal data for which the person in charge is the head of the General Directorate of Coordination and Studies of the Ministry of Interior, which “develops the necessary activities to guarantee the safety and protection of victims of gender violence, facilitates the monitoring of the measures applied, and prevents criminal activities linked to gender violence with the aim of protecting these victims and preventing criminal offenses against women who may be passive subjects of such behaviors.”

It is undeniable that through the use of this system, personal data of the interested parties is processed, as its use involves obtaining personal information provided by them through the use of forms that contain a series of predetermined statements with certain information considered relevant or appropriate to fulfill its purpose.

In this regard, Article 5 of the same legal text defines processing as “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure, or destruction.”

Furthermore, as stated in the first proven fact, the Register of Processing Activities of the Ministry of Interior, whose last update is dated 29/09/2023, establishes as the data controller of the VioGén System the Secretary of State for Security, General Directorate of Coordination and Studies (SESDGCE).

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It should be noted that the processing of personal data carried out through the forms of the VioGén system is independent of that which may be carried out simultaneously, prior, or subsequent by judges and courts for the purpose of investigating, researching, prosecuting, and trying the alleged criminal acts. Therefore, it involves two differentiated processes, and in both, the rights regarding data protection of the victims must be guaranteed, including the right to be informed about the processing of their personal data.

It is also noteworthy that among the information referred to in these forms is that related to the health or sexual life of the interested parties, which constitutes special categories of data as provided in Article 13 of Organic Law 7/2021, according to which:

“1. The processing of personal data revealing ethnic or racial origin, political opinions, religious or philosophical beliefs, or trade union affiliation, as well as the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data related to health or to the sexual life or sexual orientation of a natural person, shall only be permitted when strictly necessary, subject to adequate safeguards for the rights and freedoms of the data subject and when one of the following circumstances is met:

- a) It is provided for by a law or by European Union law.
- b) It is necessary to protect vital interests, as well as the fundamental rights and freedoms of the data subject or of another natural person.
- c) Such processing relates to data that the data subject has manifestly made public.”

Furthermore, the provision established in Organic Law 1/2004, of December 28, on Comprehensive Protection Measures against Gender Violence, cannot be overlooked, whose Article 63, relating to the protection of data related to gender violence, establishes:

“1. In the actions and procedures related to gender violence, the privacy of the victims shall be protected; in particular, their personal data, that of their descendants, and that of any other person under their care or custody.”

Similarly, Article 50 of the recent Organic Law 10/2022, of September 6, on comprehensive guarantee of sexual freedom establishes that “In the actions and procedures related to sexual violence, the privacy of the victims shall be protected, and in particular their personal data.”

In the terms indicated by the proven fact FIRST, the existence of certain information regarding

protection has been verified.

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personal data, on the website of the Ministry of the Interior, which is developed in the activity register found on that page.

However, as evidenced by the proven facts SECOND and THIRD, there is no reference whatsoever to information regarding personal data protection, neither in the protocols nor in their annexes, nor in the rights proceedings provided during the investigation by that entity.

It must be taken into account that such information is essential to guarantee the rights of the individuals concerned regarding personal data protection, since, among that information, there is, among others, information related to the identification of the data controller, the identification of the Data Protection Officer, or the purposes of the processing, information that will allow the exercise of the rights guaranteed by the regulations in this area.

Furthermore, in the case at hand, the processing of data occurs in a context where the victims are in a situation of special vulnerability, which implies that the provision of information is crucial to ensure that they have full knowledge of the purposes of the processing of personal data that will be facilitated from that moment on. This is consistent not only with the regulations on personal data protection but also with the spirit and purpose of the rules aimed at protecting victims of gender-based violence.

In this regard, the aforementioned situation of special vulnerability in which the victims find themselves entails a greater demand for compliance with the obligation to provide information regarding data protection. Based on this requirement, for such compliance to be effective, the information must be communicated clearly, accessibly, and directly at the time the processing is to be carried out. A generic publication on a website, while it may be useful as a complementary measure, does not replace the need to communicate it directly and at the appropriate time so that it is fully effective and thus meets the requirements set forth by the regulations.

In the case at hand, the absence of this information regarding data protection in a direct manner and prior to the victims whose data will be processed constitutes a breach of the duty to inform provided for in the aforementioned Article 20 of the same regulation. It should also be emphasized that the obligation to inform takes on special relevance in this case considering the nature of the processing, which not only affects individuals in a situation of special vulnerability but also involves certain categories of special data such as health or sexual life of the victims.

Finally, a brief reference should be made to Article 26 of LO 7/2021, which is referenced by the investigated party, according to which "The exercise of the rights of...

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Information, access, rectification, deletion, and limitation of processing referred to in the previous articles shall be carried out in accordance with criminal procedural rules when personal data appears in a judicial resolution, or in a register, proceedings, or files processed during investigations and criminal proceedings."

In this regard, it is worth noting that there is no provision in the current Criminal Procedure Law regarding the processing of personal data. On the contrary, there is an explicit reference in the second paragraph of Article 236 ter of Organic Law 6/1985 of the Judiciary, which establishes that "In the field of criminal jurisdiction, the processing of personal data carried out in connection with the processing by judicial bodies and public prosecutors of the processes, proceedings, or files for which they are competent, as well as that carried out within the management of the judicial and prosecutorial office, shall be governed by the provisions of the Organic Law on the protection of personal data processed for the purposes of prevention, detection, investigation, or prosecution of criminal offenses and

enforcement of criminal sanctions, without prejudice to the special provisions established in this Chapter and in procedural laws and, where applicable, in Law 50/1981, of December 30, which regulates the Organic Statute of the Public Prosecutor's Office."

Similarly, Article 236 septies of the same regulation establishes, in relation to the processing of personal data for jurisdictional purposes, that "the rights of information, access, rectification, deletion, opposition, and limitation shall be processed in accordance with the rules applicable to the process in which the data was collected."

Therefore, in the absence of an express provision in the criminal procedural law, the processing of personal data at all stages of criminal prosecution and trial, including investigation, as well as the rights of information, access, rectification, deletion, opposition, and limitation of the interested parties during the same, are governed by the current Organic Law 7/2021, whose provisions are fully applicable in the present case.

V

Typification and Qualification of the Infraction

Organic Law 7/2021 includes a framework of infractions and sanctions in the event of non-compliance with the obligations set forth in its provisions, classifying them as minor, serious, and very serious.

Article 58, paragraph f) qualifies as a very serious infraction, "The omission of the duty to inform the interested party about the processing of their personal data in accordance with the provisions of this Organic Law."

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In accordance with the evidence derived from this procedure, it is considered that the SECRETARY OF STATE FOR SECURITY, GENERAL DIRECTORATE OF COORDINATION AND STUDIES, OF THE MINISTRY OF THE INTERIOR with NIF S2816001H, has committed the infraction provided for in Article 58, paragraph f), by failing to comply with the obligation to inform the interested parties about the processing of their personal data carried out through the Comprehensive Monitoring System for Cases of Gender Violence (VioGén System).

For the purposes of the statute of limitations for infractions, the alleged infraction prescribes after three years, in accordance with Article 63 of Organic Law 7/2021, which establishes this period for those infractions classified as very serious, as is the case here.

VI

Unfulfilled Obligation of Article 35 of Organic Law 7/2021

Article 35 of Organic Law 7/2021 establishes the cases in which it is necessary for the data controller to carry out, prior to processing, an impact assessment of the processing operations planned in the protection of personal data:

"1. When it is likely that a type of processing, particularly if it uses new technologies, poses by its nature, scope, context, or purposes, a high risk to the rights and freedoms of natural persons, the data controller shall carry out, prior to processing, an assessment of the impact of the planned processing operations in the protection of personal data.

2. The assessment shall include, at a minimum, a general description of the planned processing operations, an evaluation of risks to the rights and freedoms of the interested parties, the measures contemplated to address these risks, as well as the security measures and mechanisms intended to ensure the protection of personal data and to demonstrate compliance with this Organic Law. This assessment shall take into account the rights and legitimate interests of the interested parties and other affected persons.

3. Data protection authorities may establish a list of processing operations that are subject to the requirement of conducting an impact assessment in accordance with the provisions of the previous paragraph and, likewise, may establish a list of processing operations that are not subject to this obligation. Both lists shall be merely indicative."

Regarding this obligation, during the course of the investigative proceedings and as indicated in the proven fact FIFTH, the investigated entity stated that, once the new organic law came into force, it proceeded to assess the relevance of such evaluation. For this purpose, it is provided...

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a table where the risk is analyzed when deciding to carry out a Personal Data Impact Assessment (EIDP), and in which it was not deemed necessary to carry it out, given that they assert it was not a new system nor did the circumstances indicated in Article 35 of LO 7/2021 apply.

In this regard, to determine whether the circumstances provided for in Article 35 for conducting an EIDP were present, it is necessary to verify whether, in the case of processing through the VioGén system, there was a high probability of risk to the rights and freedoms of individuals, in the terms indicated by the aforementioned article.

In this respect, it is important to highlight the nature and purposes of the processing of personal data carried out by the VioGén system, which precisely aims to assess the risk to the rights and freedoms of victims in order to adopt the most appropriate measures based on the resulting level of risk, as evidenced by the prior actions and affirmed by the investigated party itself.

In the case at hand, the nature of this processing clearly manifests a high risk to the rights and freedoms of the individuals concerned, since inadequate processing could even jeopardize the physical and moral integrity of the victims (consider the possible knowledge of such data by the aggressor), with the added factor of the existence of special categories of personal data in the aforementioned processing.

Taking these circumstances into account, it follows that, in the present case, the conditions required by Article 35 were (and are) present to consider it necessary to carry out an EIDP. This assessment will aim to determine the risks to the rights and freedoms of the victims, the measures to address them, as well as the security measures and mechanisms to ensure the protection of personal data and thus demonstrate compliance with the Organic Law.

Regarding the assertion of the investigated entity that it was not a new system, it should be noted that this circumstance does not exempt compliance with the obligation provided for, once the regulation has fully taken effect after its entry into force. While it is true that the previous regulation did not contemplate this obligation, it is equally true that, once the new organic law is in force, it has full effectiveness. Consequently, the new obligation must be applied through an evaluation of all systems created prior to its entry into force whose processing meets the conditions required by Article 35, with no transitional provision in this regard in the regulation.

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Proof of the validity of this obligation arises from the actions of the investigated entity, which proceeded to assess whether the requirements for conducting the impact assessment required by the new regulation were met, and the final outcome was not to carry it out; a decision that, considering the nature of the processing, was deemed incorrect by this authority.

Finally, it is worth mentioning the provision established by the aforementioned Register of Treatment Activities of the Ministry of the Interior regarding the security and organizational measures of the Viógen system. This Register states that “The security measures implemented correspond to those provided in Annex II (security measures) of Royal Decree 311/2022, of May 3, which regulates the National Security Scheme in the field of Electronic Administration and are described in the documents that make up the data protection and information security policy of the Ministry of the Interior and the Secretary of State for Security.”

In this regard, it is important to indicate that the aforementioned regulation governing the National Security Scheme has a different purpose than that corresponding to data protection regulations. Thus, Article One of this Royal Decree establishes that the aforementioned scheme “is constituted by the basic principles and minimum requirements necessary for adequate protection of the information processed and the services provided by the entities within its scope of application, with the aim of ensuring access, confidentiality, integrity, traceability, authenticity, availability, and preservation of the data, information, and services used by electronic means that they manage in the exercise of their competencies.”

In fact, Article Two of the aforementioned Royal Decree makes an express reference to the personal data protection regulations when the information system processes data of that nature:

“When an information system processes personal data, the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons in relation to the processing of personal data and the free movement of such data, which repeals Directive 95/46/EC (General Data Protection Regulation), and in Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights, or, where appropriate, Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions, the rest of the applicable regulations, as well as the criteria established by the Spanish Data Protection Agency or, within its competence, by the regional data protection authorities, without prejudice to the requirements established in this Royal Decree.”

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As can be seen, in the case at hand, regarding the security of personal data protection, the regulations on data protection are fully applicable, and, in particular, given the nature of the processing, the aforementioned Organic Law 7/2021, of May 26, cannot limit the adoption of security measures to compliance solely with the rules relating to the National Security Scheme.

VII

Classification and Qualification of the Infraction

Therefore, in this case, we are faced with the non-compliance of the obligation established in Article 35 of Organic Law 7/2021, by the SECRETARY OF STATE FOR SECURITY, GENERAL DIRECTORATE OF COORDINATION AND STUDIES, OF THE MINISTRY OF THE INTERIOR with NIF S2816001H for failing to carry out an impact assessment regarding the processing carried out through the VioGén system.

This non-compliance is classified as a serious infraction under Article 59.1 I), Organic Law 7/2021, according to which “The failure to conduct an impact assessment on the protection of personal data, if it results in serious harm or risks to the data subjects.”

In this sense, in the present case, the conditions set forth in the infringing type are met since, as mentioned earlier, the obligation to conduct an impact assessment on the protection of the personal data of the interested parties was violated despite the circumstances required by Article 35 being present, which implied, given the nature of the processing of the system as well as the personal data, a serious risk for those individuals.

For the purposes of the statute of limitations for infractions, the infraction attributed prescribes after two years, in accordance with Article 63 of Organic Law 7/2021, which establishes this period for those infractions classified as serious, as is the case here.

VIII

Obligation Violated under Article 41 of Organic Law 7/2021

Article 41 of Organic Law 7/2021 recognizes the special autonomy and independence of the figure of the data protection officer in order to ensure that they perform their functions correctly without any interference, expressly referring to avoiding any conflict of interest:

“The data protection officer may not be removed or sanctioned by the controller or the processor for performing their functions, unless...”

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would incur in willful misconduct or gross negligence in their exercise. The independence of the data protection officer within the organization shall be guaranteed, avoiding any conflict of interest.”

This characteristic of independence derives from the functions attributed to the aforementioned figure, which, at a minimum, must be entrusted to them by the data controller, as enumerated in Article 42 of the same regulation:

“The data controller shall assign to the data protection officer at least the following functions:

- a) Inform and advise the data controller and employees dealing with the same, regarding the obligations that they have under this Organic Law and other applicable data protection provisions.
- b) Supervise compliance with the provisions of this Organic Law and other applicable data protection provisions, as well as what is established in the data controller's policies regarding personal data protection, including the assignment of responsibilities, awareness and training of personnel participating in the processing operations, and the corresponding audits.
- c) Provide the requested advice regarding the data protection impact assessment and supervise its execution.
- d) Cooperate with the data protection authority under the terms of the current legislation.
- e) Act as a contact point for the data protection authority on matters related to processing, including the prior consultation referred to in Article 36, and carry out consultations, where appropriate, on any other matter.”

From the reading of this article, it follows that this enumeration is not exhaustive; on the contrary, it is possible to assign other types of functions related to the supervisory and advisory role. However, it is consistent with its nature that the assignment of these functions should not affect its independence or create a conflict of interest. Regarding this assertion, the recent ruling of the Court of Justice of the European Union (Sixth Chamber) of February 9, 2023 (X-FAB Dresden GmbH & Co. KG v. FC) is particularly relevant, as it addresses preliminary questions regarding certain GDPR articles concerning data protection officers and is applicable in this case, as it discusses the granting of functions and conflicts of interest.

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“In the second place, it is no less true that the data controller or their representative must ensure that these other functions and duties do not imply a ‘conflict of interest.’ Given the meaning of these terms in common language, it is appropriate to consider that, in accordance with the objective pursued by Article 38, paragraph 6, of the GDPR, the data protection officer cannot be entrusted with the execution of functions or duties that may impair the performance of the functions they exercise as a data protection officer.”

[...]

The determination of the existence of a conflict of interest, in the sense of Article 38, paragraph 6, of the GDPR, must be made on a case-by-case basis, based on an assessment of the entirety of the relevant circumstances, in particular, the organizational structure of the data controller or their representative and in light of all applicable regulations, including any policies of the latter.”

In the case at hand, as evidenced by the documentation in the file of the present procedure, the alleged conflict of interest consists of allowing or assigning the defense in a sanctioning procedure regarding data protection to the DPO by formulating and presenting allegations against the initiation

agreement of said procedure, which was directed towards the organization for which they provide services. In these terms, in order to determine the existence or not of a conflict of interest and following the ruling issued by the CJEU, it is necessary to analyze the entirety of the relevant circumstances of this situation.

In this regard, we must first recall that the role of the DPO, as a general rule, is to supervise, advise, and inform about data protection practices within the organization, maintaining a neutral and impartial stance. In fact, the explanatory memorandum defines it as "the advisory and supervisory body or figure for data protection controllers." In this sense, if the DPO assumes the defense of the organization in a sanctioning procedure, whether administrative or judicial, their ability to remain independent and impartial may be compromised.

On the other hand, the presentation of allegations in defense of the organization in a sanctioning procedure regarding data protection may be seen as an alignment with its interests, rather than maintaining a position focused precisely on supervision and advising in this matter. In such a case, they could find themselves in the position of having to review and evaluate their own advice or the decisions they had previously supervised or approved. This circumstance creates a scenario of "judge and

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part", where the DPO would be evaluating the adequacy of their own actions or recommendations, which results in a clear conflict of interest. Furthermore, there is a risk that the DPO, by becoming involved in the defense of the organization in a specific sanctioning procedure, may face internal pressures from the data controller. Such pressures can influence their decisions, compromising their autonomy and ability to act in the best interest of data protection. Similarly, the credibility of the DPO before the organization's employees and third parties (including the data protection authorities themselves) may be affected, which erodes trust in their ability to perform their functions in an objective and independent manner.

The nature of the personal data processed in this case, which aims at the prevention, detection, investigation, and prosecution of criminal offenses and the enforcement of criminal sanctions, should not be overlooked. The nature of these matters, due to their direct impact on rights and freedoms, makes the independence and oversight of the DPO even more necessary. In fact, unlike what occurs with the GDPR, in the case of these matters, Law 7/2021 establishes as a general rule the mandatory existence of a DPO, except for judicial bodies or the Public Prosecutor's Office when the processing of personal data is carried out in the exercise of their judicial functions, as stated in Article 40.

Finally, it is worth referencing the guidelines on data protection officers adopted by the Article 29 Data Protection Working Party, which, although also referring to the GDPR, is useful in terms of the interpretation and definition of "conflict of interest":

"Article 38, paragraph 6, allows DPOs to 'perform other functions and tasks.' However, it requires that the organization ensures that 'such functions and tasks do not give rise to a conflict of interest.'

The absence of a conflict of interest is closely linked to the requirement to act independently. Although DPOs may have other functions, they may only be assigned other tasks and responsibilities if these do not give rise to conflicts of interest.

This means, in particular, that the DPO cannot hold a position in the organization that leads them to determine the purposes and means of processing personal data. Due to the specific organizational structure of each organization, this must be considered on a case-by-case basis.

As a general rule, conflicting positions within an organization may include senior management positions (such as CEO, COO, CFO, CMO, head of the marketing department, head of human resources, or head of the IT department) but also other lower positions in the organizational structure if such positions lead to the determination of the purposes and means of processing.

Additionally, a conflict of interest may arise, for example, if a DPO is asked to represent the data controller or the processor before the courts in cases related to data protection."

IX

Classification and Qualification

Article 59, paragraph d) classifies the following infringement as very serious:

“d) The failure to appoint a data protection officer in the terms provided in Article 40 or to enable their effective participation in all matters related to the protection of personal data, not supporting them or interfering with the performance of their functions.”

According to the above, the attribution of functions to a Data Protection Officer (DPO) implies causing a conflict of interest, which can be considered an interference in their established functions, given their role as the principal or advisory and supervisory figure for data protection controllers, as recognized by Law 7/2021.

Such interference occurs when the task of submitting allegations in the present sanctioning procedure is assigned to them, as the DPO is required to assume a role that significantly deviates from their supervisory and advisory functions. The new responsibility could interfere with their primary duties and diminish the independence that characterizes them.

It should be noted that, as stated in this file, the initiation agreement was directed against the data controller and not against the DPO, which excludes any type of confusion and/or error between the said controller and this authority.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after two years, in accordance with Article 63 of Law 7/2021, which establishes this period for those infringements classified as serious, as is the case here.

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Proposed Sanction

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The first section of Article 62 of LO 7/2021 regarding sanctions establishes that “In the event that the responsible party is one of those listed in Article 77.1 of Organic Law 3/2018, of December 5, the sanctions and measures established in that article shall be imposed and adopted.”

The aforementioned Article 77.1 of Organic Law 3/2018 establishes that “The regime established in this article shall apply to the processing for which the following are responsible or in charge:

- a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.
- b) The judicial bodies.
- c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.
- d) The public bodies and entities of public law linked to or dependent on the Public Administrations.
- e) The independent administrative authorities.
- f) The Bank of Spain.
- g) The public law corporations when the purposes of the processing relate to the exercise of public law powers.
- h) The public sector foundations.
- i) The Public Universities.
- j) The consortiums.
- k) The parliamentary groups of the General Courts and the legislative assemblies of the autonomous communities, as well as the political groups of the Local Corporations.

2. When the responsible parties or those in charge listed in section 1 commit any of the infractions referred to in Articles 72 to 74 of this organic law, the data protection authority that is competent shall issue a resolution declaring the infraction and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infraction that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the responsible party or data processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who qualify as interested parties, where applicable.

3. Without prejudice to the provisions of the previous section, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

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Likewise, when the infractions are attributable to authorities and executives, and the existence of technical reports or recommendations for the processing that have not been duly addressed is accredited, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order the publication in the Official State Bulletin or the corresponding autonomous bulletin.

4. The resolutions relating to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”

XI

Adoption of Measures

Article 61 of LO 7/2021 regarding the legal regime of the sanctioning regime establishes that the “exercise of the sanctioning power that corresponds to the competent data protection authorities shall be governed by the provisions of this chapter, by Titles VII and IX of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights and, insofar as it does not contradict it, supplementarily by the regulations on the common administrative procedure of the Public Administrations and the legal regime of the public sector.”

Likewise, the first section of Article 62 establishes that “In the event that the responsible party is one of those listed in Article 77.1 of Organic Law 3/2018, of December 5, the sanctions and measures established in that article shall be imposed and adopted.”

Based on these provisions and considering that the investigated party is among the subjects provided for in Article 77.1, through this resolution it is agreed to impose on the responsible party the adoption of the following corrective measures to adjust its actions to the regulations within the period indicated below:

- Include, within a maximum period of three months, the information on data protection required by Article 21 of LO 7/2021 in all documents and/or proceedings provided to the victims at the time their personal data are to be processed, in such a way that the obligation established in Article 20 of that regulation is effectively fulfilled.

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- Implement, within a maximum period of three months, the necessary measures to ensure the autonomy and independence of the DPD and thereby avoid any situation that may lead to a conflict of interest.

- Proceed, within a maximum period of six months, to carry out and complete the Personal Data Impact Assessment in the terms and with the minimum content required by Article 35 of LO 7/2021.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement as provided in Article 58,

paragraph m) of LO 7/2021, which qualifies as a very serious infringement: m) Non-compliance with the resolutions issued by the competent data protection authorities, in the exercise of the powers conferred by Article 50.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that S. DE E. DE SEGURIDAD, with NIF S2816001H, has committed the following infringements provided for in LO 7/2021

- Infringement of Article 20 of LO 7/2021, classified in Article 59 f)
- Infringement of Article 35 of LO 7/2021, classified in Article 59.e)
- Infringement of Article 41 of LO 7/2021, classified in Article 59.l)

SECOND: TO ORDER S. DE E. DE SEGURIDAD, with NIF S2816001H, to, pursuant to Article 62 of LO 7/2021, from the moment this resolution becomes final and enforceable, demonstrate compliance with the following corrective measures within the period indicated below:

- Include, within a maximum period of three months, the information regarding data protection required by Article 21 of LO 7/2021 in all documents and/or proceedings provided to victims at the time their personal data is to be processed, so that the obligation set forth in Article 20 of said regulation is effectively fulfilled.
- Implement, within a maximum period of three months, the necessary measures to ensure the autonomy and independence of the DPD and thereby avoid any situation that may lead to a conflict of interest.

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- Proceed, within a maximum period of six months, to carry out and complete the Personal Data Impact Assessment in the terms and with the minimum content required by Article 35 of LO 7/2021.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement as provided in Article 58, paragraph m) of LO 7/2021, which qualifies as a very serious infringement: m) Non-compliance with the resolutions issued by the competent data protection authorities, in the exercise of the powers conferred by Article 50.

THIRD: NOTIFY this resolution to S. DE E. DE SEGURIDAD with NIF S2816001H.

FOURTH: Communicate this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD, applicable by virtue of Article 62 of LO 7/2021.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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